

2ND SCH.

Session and Chapter	Short Title	Extent of Repeal
25 & 26 Geo. 5. c. 27.	The London Passenger Transport (Agreement) Act, 1935.	The whole Act.
26 Geo. 5 & 1 Edw. 8. c. 6.	The Railways (Agreement) Act, 1935.	The whole Act.
1 Edw. 8. & 1 Geo. 6. c. 28.	The Harbours, Piers and Ferries (Scotland) Act, 1937.	Section twenty-four.
10 & 11 Geo. 6. c. 49.	The Transport Act, 1947.	Section eighty-two. In section eighty-three, sub-sections (1) to (4). Section eighty-four.
1 & 2 Eliz. 2. c. 13.	The Transport Act, 1953.	In section twenty-one, sub-section (3), and in sub-section (4), the words "or standard", and the words from "Notwithstanding anything" onwards. In the Fourth Schedule, in Part I, in paragraph 1, in sub-paragraph (2), the words "notwithstanding anything in subsection (1) of the said section eighty-three".

CHAPTER 69

Wages Councils Act, 1959

ARRANGEMENT OF SECTIONS

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ESTABLISHMENT OF WAGES COUNCILS

Section

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Third Schedule—Provisions as to Advisory Committees.

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An Act to consolidate the enactments relating to Wages
Councils. [29th July, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

ESTABLISHMENT OF WAGES COUNCILS

1.—(1) Subject to the provisions of this Part of this Act, the Minister may by order establish a wages council to perform, in relation to the workers described in the order and their employers, the functions specified in the subsequent provisions of this Act. Establishment
of wages
councils.

(2) An order establishing a wages council may be made by the Minister either—

- (a) if he is of opinion that no adequate machinery exists for the effective regulation of the remuneration of the workers described in the order and that, having regard to the remuneration existing among those workers, or any of them, it is expedient that such a council should be established; or
- (b) if he thinks fit, to give effect to a recommendation of a commission of inquiry made on the reference to them, in accordance with the following section, of an application made in accordance therewith for the establishment of a wages council; or
- (c) if he thinks fit, to give effect to the recommendation of a commission of inquiry made in a case where the Minister, being of opinion that no adequate machinery exists for the effective regulation of the remuneration of any workers or the existing machinery is likely to cease to exist or be adequate for that purpose and a reasonable standard of remuneration among those workers will not be maintained, refers to the commission the question whether a wages council should be established with respect to any of those workers and their employers.

PART I
—cont.

(3) The provisions in that behalf of the First Schedule to this Act shall have effect with respect to the making of orders establishing wages councils.

(4) The provisions in that behalf of the Second Schedule to this Act shall have effect with respect to the constitution, officers and proceedings of wages councils.

Applications
for wages
council orders.

2.—(1) An application for the establishment of a wages council with respect to any workers and their employers may be made to the Minister either—

(a) by a joint industrial council, conciliation board or other similar body constituted by organisations representative respectively of those workers and their employers ; or

(b) jointly by any organisation of workers and any organisation of employers which claim to be organisations that habitually take part in the settlement of remuneration and conditions of employment for those workers,

on the ground, in either case, that the existing machinery for the settlement of remuneration and conditions of employment for those workers is likely to cease to exist or be adequate for that purpose.

(2) Subject to the provisions of this and the following subsection, where such an application as aforesaid is made to him the Minister—

(a) if he is satisfied that there are sufficient grounds to justify the reference of the application to a commission of inquiry, and, in the case of an application under paragraph (b) of the foregoing subsection, that the claim of the organisations habitually to take part in the settlement of remuneration and conditions of employment for those workers is well-founded, shall refer the application to a commission of inquiry to inquire into and report on the application ;

(b) if he is not so satisfied shall notify the applicants to that effect, in which case no further steps shall be taken on the application unless and until he is so satisfied by fresh facts brought to his notice :

Provided that before taking either of the said courses, the Minister may require the applicants to furnish such information, if any, in relation to the application as he considers necessary.

(3) If, on considering an application under subsection (1) of this section, it appears to the Minister either—

PART I
—cont.

- (a) that there is a joint industrial council, conciliation board or other similar body constituted by organisations of workers and organisations of employers, being a council, board or body which would or might be affected by the establishment of a wages council in pursuance of the application ; or
- (b) that there are organisations of workers and organisations of employers representative respectively of workers other than workers to whom the application relates and their employers, who would or might be affected by the establishment of a wages council as aforesaid,

being a council, board or body, or, as the case may be, organisations, which are parties to joint voluntary machinery for the settlement of remuneration and conditions of employment but are not parties to the application for a wages council, the Minister shall, before deciding to refer the application to a commission of inquiry, give notice of the application to that council, board or body or, as the case may be, to those organisations, shall consider any observations in writing which may be submitted to him by them within such period as he may direct, not being less than one month from the date of the notice, and, if he decides to refer the application to a commission of inquiry, shall transmit a copy of the observations to the commission.

(4) If, before an application is referred to a commission of inquiry, it is withdrawn by the applicants, no further proceedings shall be had thereon.

3.—(1) Where the Minister makes to a commission of inquiry any such reference as is mentioned in paragraph (b) or (c) of subsection (2) of section one of this Act, it shall be the duty of the commission to consider not only the subject matter of the reference but also any other question or matter which, in the opinion of the commission, is relevant thereto, and in particular to consider whether there are any other workers (being workers who, in the opinion of the commission, are engaged in work which is complementary, subsidiary or closely allied to the work performed by the workers specified in the reference or any of them) whose position should be dealt with together with that of the workers, or some of the workers, specified as aforesaid ; and in relation to any such reference to a commission of inquiry, any reference in this Part of this Act to the workers with whom the commission is concerned shall be construed as a reference to the workers specified as aforesaid and any such other workers as aforesaid.

Proceedings
on references
as to establish-
ment of wages
councils.

(2) If the commission is of opinion with respect to the workers with whom it is concerned or any of those workers whose

PART I
—cont.

position should, in the opinion of the commission, be separately dealt with—

(a) that there exists machinery set up by agreement between organisations representing workers and employers respectively which is, or can be made by improvements which it is practicable to secure, adequate for regulating the remuneration and conditions of employment of those workers ; and

(b) that there is no reason to believe that that machinery is likely to cease to exist or be adequate for that purpose,

the commission shall report to the Minister accordingly and may include in its report any suggestions which it may think fit to make as to the improvement of that machinery.

(3) Where any such suggestions are so included, the Minister shall take such steps as appear to him to be expedient and practicable to secure the improvements in question.

(4) If the commission is of opinion with respect to the workers with whom it is concerned or any of those workers whose position should, in the opinion of the commission, be separately dealt with—

(a) that machinery for regulating the remuneration and conditions of employment of those workers is not, and cannot be made by any improvements which it is practicable to secure, adequate for that purpose, or does not exist ; or

(b) that the existing machinery is likely to cease to exist or be adequate for that purpose,

and that as a result a reasonable standard of remuneration among those workers is not being or will not be maintained, the commission may make a report to the Minister embodying a recommendation for the establishment of a wages council in respect of those workers and their employers.

(5) In considering for the purposes of section one of this Act whether any machinery is, or is likely to remain, adequate for regulating the remuneration and conditions of employment of any workers, the commission shall consider not only what matters are capable of being dealt with by that machinery, but also to what extent those matters are covered by the agreements or awards arrived at or given thereunder, and to what extent the practice is, or is likely to be, in accordance with those agreements or awards.

4.—(1) The Minister may at any time abolish a wages council by order made—

PART I
—cont.

- (a) to give effect to an application in that behalf made to him in accordance with the following section, or
- (b) without any such application, subject however to the provisions of section six of this Act.

Abolition,
variation of
field of
operation, of
wages councils.

(2) The Minister may at any time by order vary the field of operation of a wages council.

(3) An order under this section abolishing or varying the field of operation of one or more wages councils may include provision for the establishment of one or more wages councils operating in relation to all or any of the workers in relation to whom the first mentioned council or councils would have operated but for the order, and such other workers, if any, as may be specified in the order.

(4) Where an order of the Minister under this section directs that any workers shall be excluded from the field of operation of one wages council and brought within the field of operation of another, the order may provide that anything done by, or to give effect to proposals made by, the first-mentioned council shall have effect in relation to those workers as if it had been done by, or to give effect to proposals made by, the second-mentioned council and may make such further provision as appears to the Minister to be expedient in connection with the transition.

(5) Where an order of the Minister under this section directs that a wages council shall be abolished or shall cease to operate in relation to any workers, then, save as is otherwise provided by the order, anything done by, or to give effect to proposals made by, the wages council shall, except as respects things previously done or omitted to be done, cease to have effect or, as the case may be, cease to have effect in relation to the workers in relation to whom the council ceases to operate.

(6) The provisions in that behalf of the First Schedule to this Act shall have effect with respect to the making of orders under this section.

5.—(1) An application such as is mentioned in paragraph (a) of subsection (1) of the foregoing section may be made to the Minister either—

Applications
for abolition of
wages councils.

- (a) by a joint industrial council, conciliation board or other similar body constituted by organisations of workers and organisations of employers which represent respectively substantial proportions of the workers and

PART I
—cont.

employers with respect to whom that wages council operates ; or

- (b) jointly by organisations of workers and organisations of employers which represent respectively substantial proportions of the workers and employers aforesaid.

(2) The grounds on which any such application may be made are that the council, board or body provides, or, as the case may be, that the organisations jointly provide, machinery which is, and is likely to remain, adequate for the effective regulation of remuneration and conditions of employment for those workers.

References to
commission of
inquiry as to
variation or
revocation of
wages council
orders.

6.—(1) The Minister—

- (a) shall in any case where an application for the abolition of a wages council has been made to him under the foregoing section and he does not thereupon proceed to the making of an order giving effect to the application,

(b) may in any other case where he is considering whether to exercise his power under section four of this Act to abolish or vary the field of operation of a wages council, refer to a commission of inquiry the question whether the council should be abolished or, as the case may be, its field of operation varied.

(2) On a reference under this section of a question as to the abolition of a wages council a commission of inquiry, if of opinion that it is expedient to do so having regard—

- (a) to the extent to which there is, and is likely to remain, adequate machinery set up by agreement between organisations representing workers and employers respectively for the effective regulation of remuneration and conditions of employment of workers within the field of operation of the wages council to which the reference relates, or
- (b) to the extent (if any) to which it is practicable and desirable to bring within the field of operation of another wages council all or any of the workers within the field of operation of the council to which the reference relates,

or to both those considerations, may make a report to the Minister recommending—

- (i) the abolition of the wages council to which the reference relates, or
- (ii) the narrowing of the field of operation of the council, and (in either case), if the commission is of opinion that it is expedient as aforesaid, also recommending the transfer of

workers to the field of operation of another wages council, whether already existing or to be established.

PART I
—cont.

(3) On a reference under this section as to the variation of the field of operation of a wages council the commission may make a report to the Minister recommending any such variation (including the transfer of workers to the field of operation of any other wages council, whether already existing or to be established) which appears to the commission desirable in all the circumstances.

(4) In considering for the purposes of section four of this Act whether any machinery is, or is likely to remain, adequate for regulating the remuneration and conditions of employment of any workers, a commission of inquiry shall consider not only what matters are capable of being dealt with by that machinery, but also to what extent those matters are covered by the agreements or awards arrived at or given thereunder, and to what extent the practice is, or is likely to be, in accordance with those agreements or awards.

7.—(1) The Minister may, if he thinks fit so to do, by order establish a central co-ordinating committee in relation to any two or more wages councils, or abolish, or vary the field of operation of, any central co-ordinating committee so established: Central
co-ordinating
committees.

Provided that, except where either of the two following subsections applies, the Minister shall, before making any such order, consult the wages councils concerned.

(2) Where a commission of inquiry makes a recommendation for the establishment of a wages council, it may include in its report a recommendation for the establishment, in relation to any wages council established in accordance with the recommendation and any other wages council (including a council proposed to be established by another recommendation embodied in the same report), of a central co-ordinating committee, or for the variation of the field of operation of an existing central co-ordinating committee so that it operates also in connection with any wages council established in accordance with the recommendation.

(3) Where a commission of inquiry makes a recommendation for the abolition of a wages council, it may include in its report a recommendation for the variation of the field of operation of an existing central co-ordinating committee so that it no longer operates in relation to the council to be abolished, or a recommendation for the abolition of any central co-ordinating committee theretofore operating in relation to the wages council to be abolished.

(4) The Minister may by order give effect to a recommendation made under either of the two foregoing subsections.

PART I
—cont.

(5) It shall be the duty of any central co-ordinating committee from time to time—

- (a) to consider whether the field of operation of the wages councils in relation to which it is established is properly divided as between those councils and to report thereon to the Minister ;
- (b) to make recommendations to those councils with respect to the principles to be followed by them in the exercise of their powers under this Act ;
- (c) to consider any question referred to it by the Minister or by the said councils or any two or more of them, and to report thereon to the Minister, or to the councils which referred the question, as the case may be.

(6) The provisions in that behalf of the Second Schedule to this Act shall have effect with respect to the constitution, officers and proceedings of central co-ordinating committees.

Wages
councils:
advisory
committees.

8.—(1) A wages council may request the Minister to appoint a committee for any of the workers within the field of operation of the council and the Minister shall appoint a committee accordingly, and the council may refer to it for a report and recommendations any matter relating to those workers which the council thinks it expedient so to refer.

(2) The provisions of the Third Schedule to this Act shall have effect with respect to committees appointed under this section.

General
provisions
as to
commissions
of inquiry.

9.—(1) The provisions of the Fourth Schedule to this Act shall have effect with respect to the constitution, officers and proceedings of commissions of inquiry.

(2) On any reference under this Part of this Act to a commission of inquiry, the commission shall make all such investigations as appear to it to be necessary and shall publish in the prescribed manner a notice stating the questions which it is its duty to consider by virtue of the reference and further stating that it will consider representations with respect thereto made to it in writing within such period as may be specified in the notice, not being less than forty days from the date of the publication thereof ; and it shall consider any representations made to it within that period and then make such further inquiries as it considers necessary including, so far as it considers necessary, the hearing of oral evidence.

(3) Any power conferred by this Part of this Act on the Minister to make an order giving effect to a recommendation of a commission of inquiry shall be construed as including power to make an order giving effect to that recommendation with such

modifications as he thinks fit, being modifications which, in his opinion, do not effect important alterations in the character of the recommendation.

PART I
—cont.

(4) Where the Minister receives any report from a commission of inquiry he may, if he thinks fit, refer the report back to the commission and the commission shall thereupon reconsider it having regard to any observations made by him and shall make a further report, and the like proceedings shall be had on any such further report as in the case of an original report.

(5) The Minister shall publish every report made to him by a commission of inquiry under this Part of this Act:

Provided that where he refers a report back to the commission, he shall not be bound to publish it until he publishes the further report of the commission.

10.—(1) A wages council shall consider, as occasion requires, any matter referred to it by the Minister or any government department with reference to the industrial conditions prevailing as respects the workers and employers in relation to whom it operates, and shall make a report upon the matter to the Minister or, as the case may be, to that department.

General duty
of wages
councils
to consider
references by
government
departments.

(2) A wages council may, if it thinks it expedient so to do, make of its own motion a recommendation to the Minister or any government department with reference to the said conditions and, where such a recommendation is so made, the Minister or, as the case may be, that department, shall forthwith take it into consideration.

PART II

WAGES REGULATION ORDERS

11.—(1) Subject to and in accordance with the provisions of this section, any wages council shall have power to submit to the Minister proposals (hereafter in this Act referred to as “wages regulation proposals”)—

Power to fix
remuneration
and holidays.

(a) for fixing the remuneration to be paid, either generally or for any particular work, by their employers to all or any of the workers in relation to whom the council operates;

(b) for requiring all or any such workers as aforesaid to be allowed holidays by their employers.

The power to submit proposals for fixing remuneration shall include power to submit proposals for fixing holiday remuneration.

PART II
—cont.

(2) Wages regulation proposals for requiring a worker to be allowed a holiday shall not be made unless both holiday remuneration in respect of the period of the holiday and remuneration other than holiday remuneration have been or are being fixed under this Part of this Act for that worker, shall provide for the duration of the holiday being related to the duration of the period for which the worker has been employed or engaged to be employed by the employer who is to allow the holiday, and, subject as aforesaid, may make provision as to the times at which or the periods within which, and the circumstances in which, the holiday shall be allowed; and wages regulation proposals for fixing holiday remuneration may contain provisions as to the times at which, and the conditions subject to which, that remuneration shall accrue and shall become payable, and for securing that any such remuneration which has accrued due to a worker during his employment by any employer shall, in the event of his ceasing to be employed by that employer before he becomes entitled to be allowed a holiday by him, nevertheless become payable by the employer to the worker.

(3) Before submitting any wages regulation proposals to the Minister, a wages council shall make such investigations as it thinks fit and shall—

- (a) publish, in the prescribed manner, notice of the proposals, and
- (b) give such notice thereof as may be prescribed for the purpose of informing, so far as practicable, all persons affected thereby,

stating the place where copies of the proposals may be obtained and the period (which shall not be less than fourteen days from the date of publication of the notice) within which written representations with respect to the proposals may be sent to the council; and the council shall consider any written representations made to it within that period and shall make such further inquiries as it considers necessary and may then submit the proposals to the Minister either without amendment or with such amendments as it thinks fit having regard to the representations:

Provided that if the council, before publishing its proposals, resolves that, in the event of no representation with respect to the proposals being made to it within the said period, the proposals shall, without more, be submitted to the Minister, the proposals shall, if no representation is so made, be submitted to the Minister accordingly.

(4) Where the Minister receives any wages regulation proposals, he shall make an order (hereafter in this Act referred to as a "wages regulation order") giving effect to the proposals as from such date as may be specified in the order:

PART II
—cont.

Provided that the Minister may, if he thinks fit, refer the proposals back to the council and the council shall thereupon reconsider them having regard to any observations made by the Minister and may, if it thinks fit, re-submit the proposals to the Minister either without amendment or with such amendments as it thinks fit having regard to those observations; and where proposals are so re-submitted, the like proceedings shall be had thereon as in the case of original proposals.

The date to be so specified shall be a date subsequent to the date of the order, and where, as respects any worker who is paid wages at intervals not exceeding seven days, the date so specified does not correspond with the beginning of the period for which the wages are paid, the order shall, as respects that worker, become effective as from the beginning of the next such period following the date specified in the order.

(5) As soon as the Minister has made a wages regulation order, he shall give notice of the making thereof to the wages council and that council shall give such notice of the order and the contents thereof, and shall then and subsequently give such notice of any other prescribed matters affecting the operation thereof, as may be prescribed for the purpose of informing, so far as practicable, all persons who will be thereby affected.

(6) Any wages regulation proposals and any wages regulation order for giving effect thereto may make different provision for different cases, and may also contain provision for the amendment or revocation of previous wages regulation orders.

(7) No wages regulation order shall have effect so as to prejudice any rights as to remuneration or holidays conferred on any worker by or under any Act other than this Act.

12.—(1) If a contract between a worker to whom a wages regulation order applies and his employer provides for the payment of less remuneration than the statutory minimum remuneration, it shall have effect as if for that less remuneration there were substituted the statutory minimum remuneration, and if any such contract provides for the payment of any holiday remuneration at times or subject to conditions other than those specified in the order, it shall have effect as if for those times or conditions there were substituted the times or conditions specified in the order.

Effect and enforcement of wages regulation orders.

(2) If an employer fails to pay a worker to whom a wages regulation order applies remuneration not less than the statutory minimum remuneration, or fails to pay to any such worker holiday remuneration at the times and subject to the conditions specified in the order or fails to allow to any such worker the holidays fixed by the order, he shall be liable on summary

PART II
—*cont.*

conviction to a fine not exceeding twenty pounds for each offence, and where the employer or any other person charged as a person to whose act or default the offence was due has been found guilty of an offence under this section consisting of a failure to pay remuneration not less than the statutory minimum remuneration, the court may order the employer to pay such sum as is found by the court to represent the difference between the amount which ought to have been paid to the worker by way of remuneration, if the provisions of this Part of this Act had been complied with, and the amount actually so paid.

(3) Where proceedings are brought under the foregoing subsection in respect of an offence consisting of a failure to pay remuneration not less than the statutory minimum remuneration, then, if notice of intention so to do has been served with the summons, warrant or complaint,—

(a) evidence may, on the employer or any other person charged as a person to whose act or default the offence was due having been found guilty of the offence, be given of any like contravention on the part of the employer in respect of any period during the two years immediately preceding the date of the offence; and

(b) on proof of the failure, the court may order the employer to pay such sum as is found by the court to represent the difference between the amount which ought to have been paid during that period to the worker by way of remuneration, if the provisions of this Part of this Act had been complied with, and the amount actually so paid.

(4) The powers given by this section for the recovery of sums due from an employer to a worker shall not be in derogation of any right to recover such sums by civil proceedings.

(5) In the application of this section to Scotland subsections (2) and (3) shall have effect as if the words “or any other person charged as a person to whose act or default the offence was due” were omitted.

Permits to
infirm and
incapacitated
persons.

13.—(1) If, as respects any worker employed or desiring to be employed in such circumstances that a wages regulation order applies or will apply to him, the wages council is satisfied, on application being made to it for a permit under this section either by the worker or the employer or a prospective employer, that the worker is affected by infirmity or physical incapacity which renders him incapable of earning the statutory minimum remuneration, it may, if it thinks fit, grant, subject to such conditions, if any, as it may determine, a permit authorising his employment at less than the statutory minimum remuneration,

and while the permit is in force the remuneration authorised to be paid to him by the permit shall, if those conditions are complied with, be deemed to be the statutory minimum remuneration.

PART II
—cont.

(2) Where an employer employs any worker in reliance on any document purporting to be a permit granted under the foregoing subsection authorising the employment of that worker at less than the statutory minimum remuneration, then, if the employer has notified the wages council in question that, relying on that document, he is employing or proposing to employ that worker at a specified remuneration, the document shall, notwithstanding that it is not or is no longer a valid permit relating to that worker, be deemed, subject to the terms thereof and as respects only any period after the notification, to be such a permit until notice to the contrary is received by the employer from the council.

14.—(1) Subject to the provisions of this Part of this Act, any reference in this Part of this Act to remuneration shall be construed as a reference to the amount obtained or to be obtained in cash by the worker from his employer after allowing for the worker's necessary expenditure, if any, in connection with his employment, and clear of all deductions in respect of any matter whatsoever, except any deduction lawfully made—

Computation
of remunera-
tion.

- (a) under the Income Tax Acts, the National Insurance (Industrial Injuries) Act, 1946, the National Insurance Act, 1946, or any enactment requiring or authorising deductions to be made for the purposes of a superannuation scheme;
- (b) at the request in writing of the worker, either for the purposes of a superannuation scheme or a thrift scheme or for any purpose in the carrying out of which the employer has no beneficial financial interest, whether directly or indirectly; or
- (c) in pursuance of, or in accordance with, such a contract in that behalf as is mentioned in section one, two or three of the Truck Act, 1896, and in accordance with the provisions of that section.

(2) Notwithstanding anything in subsection (1) of this section, wages regulation proposals and wages regulation orders may contain provisions authorising specified benefits or advantages, being benefits or advantages provided, in pursuance of the terms and conditions of the employment of workers, by the employer or by some other person under arrangements with the employer and not being benefits or advantages the provision of which is illegal by virtue of the Truck Acts, 1831 to 1940, or of any other enactment, to be reckoned as payment of wages by the

PART II
—*cont.*

employer in lieu of payment in cash, and defining the value at which any such benefits or advantages are to be reckoned.

(3) If any payment is made by a worker in respect of any benefit or advantage provided as mentioned in the foregoing subsection, then,—

- (a) if the benefit or advantage is authorised by virtue of that subsection to be reckoned as therein mentioned, the amount of the payment shall be deducted from the defined value for the purposes of the reckoning ;
- (b) if the benefit or advantage is authorised by virtue of that subsection to be reckoned as therein mentioned, any excess of the amount of the payment over the defined value shall be treated for the purposes of subsection (1) of this section as if it had been a deduction not being one of the excepted deductions therein mentioned ;
- (c) if the benefit or advantage is specified in a wages regulation order as one which has been taken into account in fixing the statutory minimum remuneration, the whole of the payment shall be treated for the purposes of subsection (1) of this section as if it had been a deduction not being one of the excepted deductions therein mentioned.

(4) Nothing in this section shall be construed as authorising the making of any deduction, or the giving of remuneration in any manner, which is illegal by virtue of the Truck Acts, 1831 to 1940, or of any other enactment.

Apportionment of remuneration

15. Where for any period a worker receives remuneration for work for part of which he is entitled to statutory minimum remuneration at one or more time rates and for the remainder of which no statutory minimum remuneration is fixed, the amount of the remuneration which is to be attributed to the work for which he is entitled to statutory minimum remuneration shall, if not apparent from the terms of the contract between the employer and the worker, be deemed for the purposes of this Act to be the amount which bears to the total amount of the remuneration the same proportion as the time spent on the part of the work for which he is entitled to statutory minimum remuneration bears to the time spent on the whole of the work.

Employers not to receive premiums.

16.—(1) Where a worker to whom a wages regulation order applies is an apprentice or learner, it shall not be lawful for his employer to receive directly or indirectly from him, or on his behalf or on his account, any payment by way of premium :

Provided that nothing in this section shall apply to any such payment duly made in pursuance of any instrument of apprenticeship not later than four weeks after the commencement of

the apprenticeship or to any such payment made at any time if duly made in pursuance of any instrument of apprenticeship approved for the purposes of this proviso by a wages council.

PART II
—*cont.*

(2) If any employer acts in contravention of this section, he shall be liable on summary conviction in respect of each offence to a fine not exceeding twenty pounds, and the court may, in addition to imposing a fine, order him to repay to the worker or other person by whom the payment was made the sum improperly received by way of premium.

17.—(1) The employer of any workers to whom a wages regulation order applies shall keep such records as are necessary to show whether or not the provisions of this Part of this Act are being complied with as respects them, and the records shall be retained by the employer for three years.

Records and
notices.

(2) The employer of any workers shall post in the prescribed manner such notices as may be prescribed for the purpose of informing them of any wages regulation proposals or wages regulation order affecting them, and, if it is so prescribed, shall give notice in any other prescribed manner to the said workers of the said matters and of such other matters, if any, as may be prescribed.

(3) If an employer fails to comply with any of the requirements of this section he shall be liable on summary conviction to a fine not exceeding twenty pounds.

18.—(1) Where the immediate employer of any worker is himself in the employment of some other person and that worker is employed on the premises of that other person, that other person shall for the purposes of this Part of this Act be deemed to be the employer of that worker jointly with the immediate employer.

Criminal
liability of
agent and
superior
employer,
and special
defence open
to employer.

(2) Where an employer is charged with an offence under this Part of this Act, he shall be entitled, upon information duly laid by him and on giving to the prosecution not less than three days' notice in writing of his intention, to have any other person to whose act or default he alleges that the offence in question was due brought before the court at the time appointed for the hearing of the charge; and if, after the commission of the offence has been proved, the employer proves that the offence was due to the act or the default of that other person, that other person may be convicted of the offence, and, if the employer further proves that he has used all due diligence to secure that this Part of this Act and any relevant regulation or order made thereunder are complied with, he shall be acquitted of the offence.

PART II
—*cont.*

(3) Where a defendant seeks to avail himself of the provisions of subsection (2) of this section—

- (a) the prosecution, as well as the person whom the defendant charges with the offence, shall have the right to cross-examine him if he gives evidence and any witnesses called by him in support of his pleas and to call rebutting evidence ;
- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(4) Where it appears to an officer acting for the purposes of this Part of this Act that an offence has been committed in respect of which proceedings might be taken under this Part of this Act against an employer, and the officer is reasonably satisfied that the offence of which complaint is made was due to an act or default of some other person and that the employer could establish a defence under subsection (2) of this section, the officer may cause proceedings to be taken against that other person without first causing proceedings to be taken against the employer.

In any such proceedings the defendant may be charged with and, on proof that the offence was due to his act or default, be convicted of, the offence with which the employer might have been charged.

(5) The three last foregoing subsections shall not apply to Scotland, but—

- (a) where an offence for which an employer is, under this Part of this Act, liable to a fine was due to an act or default of an agent of the employer or other person, then, whether proceedings are or are not taken against the employer, that agent or other person may be charged with and convicted of the offence, and shall be liable on conviction to the same punishment as might have been inflicted on the employer if he had been convicted of the offence ;
- (b) where an employer who is charged with an offence under this Part of this Act proves to the satisfaction of the court that he has used due diligence to secure compliance with this Part of this Act and any relevant regulation or order made thereunder and that the offence was due to the act or default of some other person, he shall be acquitted of the offence.

Officers.

19.—(1) The Minister, with the approval of the Treasury as to numbers and salaries, may appoint officers to act for the purposes of this Part of this Act, and may, in lieu of or in addition to appointing any officers under this section, arrange

PART II
—cont.

with any government department that officers of that department shall act for the purposes of this Part of this Act.

(2) Every officer acting for the purposes of this Part of this Act shall be furnished by the Minister with a certificate of his appointment or authority so to act, and when acting under this Part of this Act shall, if so required by any person affected, produce the certificate to him.

(3) An officer acting for the purposes of this Part of this Act shall have power for the performance of his duties—

- (a) to require the production of wages sheets or other records of wages kept by an employer, and records of payments made to outworkers by persons giving out work, and any other such records as are required by this Part of this Act to be kept by employers, and to inspect and examine those sheets or records and copy any material part thereof ;
- (b) to require the production of any licence or certificate granted under the Road and Rail Traffic Act, 1933, and of any records kept in pursuance of section sixteen of that Act, and to examine any such licence, certificate or records and copy it or them or any material part thereof ;
- (c) to require any person giving out work and any outworker to give any information which it is in his power to give with respect to the names and addresses of the persons to whom the work is given out or from whom the work is received, as the case may be, and with respect to the payments to be made for the work ;
- (d) at all reasonable times to enter any premises at which any employer to whom a wages regulation order applies carries on his business (including any place used, in connection with that business, for giving out work to outworkers and any premises which the officer has reasonable cause to believe to be used by or by arrangement with the employer to provide living accommodation for workers) ;
- (e) to inspect and copy any material part of any list of outworkers kept by an employer or person giving out work to outworkers ;
- (f) to examine, either alone or in the presence of any other person, as he thinks fit, with respect to any matters under this Part of this Act, any person whom he has reasonable cause to believe to be or to have been a worker to whom a wages regulation order applies or applied or the employer of any such person or a servant or agent of the employer employed in the employer's business, and to require every such person to be so

PART II
—*cont.*

examined and to sign a declaration of the truth of the matters in respect of which he is so examined:

Provided that no person shall be required under paragraph (f) of this subsection to give any information tending to criminate himself.

(4) In England or Wales an officer acting for the purposes of this Part of this Act may institute proceedings for any offence under this Part of this Act and may, although not of counsel or a solicitor, conduct any such proceedings.

(5) An officer acting for the purposes of this Part of this Act who is authorised in that behalf by general or special directions of the Minister may, if it appears to him that a sum is due from an employer to a worker on account of the payment to him of remuneration less than the statutory minimum remuneration, institute on behalf of and in the name of that worker civil proceedings for the recovery of that sum and in any such proceedings the court may make an order for the payment of costs by the officer as if he were a party to the proceedings.

The power given by this subsection for the recovery of sums due from an employer to a worker shall not be in derogation of any right of the worker to recover such sums by civil proceedings.

(6) Any person who obstructs an officer acting for the purposes of this Part of this Act in the exercise of any power conferred by this section, or fails to comply with any requirement of such an officer made in the exercise of any such power, shall be liable on summary conviction to a fine not exceeding twenty pounds:

Provided that it shall be a defence for a person charged under this subsection with failing to comply with a requirement to prove that it was not reasonably practicable to comply therewith.

Penalty for false entries in records, producing false records or giving false information.

20. If any person makes or causes to be made or knowingly allows to be made any entry in a record required by this Part of this Act to be kept by employers, which he knows to be false in a material particular, or for purposes connected with this Part of this Act produces or furnishes, or causes or knowingly allows to be produced or furnished, any wages sheet, record, list or information which he knows to be false in a material particular, he shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment.

Presumption as to employment of road haulage workers.

21. If any person is convicted under Part I of the Road and Rail Traffic Act, 1933, of using a goods vehicle for a purpose for which an A licence or a B licence is required, otherwise than under such a licence, any work performed by a worker in connection with the vehicle while it was so used shall, for the

purposes of any wages regulation order the operation whereof depends on whether or not a vehicle is specified in or authorised to be used by an A licence or a B licence, be deemed to have been work performed in connection with a vehicle specified in an A licence or a B licence granted under that Act, as the case may be.

PART II
—*cont.*

PART III

SUPPLEMENTARY

22.—(1) The Minister may make regulations for prescribing anything which by this Act is authorised or required to be prescribed. Provisions as to orders and regulations.

(2) Any power to make orders or regulations conferred on the Minister by this Act shall be exercisable by statutory instrument.

(3) Any statutory instrument containing any order of the Minister made under Part I of this Act or regulations made under any of the provisions of this Act shall (together, in the case of an order, with the report of any commission of inquiry relating thereto) be laid before Parliament after being made, and shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) Any power conferred by this Act to prescribe the manner in which anything is to be published shall include a power to prescribe the date which is to be taken for the purposes of this Act as the date of the publication.

23. The expenses of the Minister in carrying this Act into effect, and any expenses authorised by the Minister with the consent of the Treasury to be incurred by a wages council, a commission of inquiry, or a central co-ordinating committee established under this Act by order of the Minister, shall be defrayed out of moneys provided by Parliament. Expenses.

24. In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:— Interpretation.

“home-worker” means a person who contracts with a person, for the purposes of that person’s business, for the execution of work to be done in a place not under the control or management of the person with whom he contracts, and who does not normally make use of the services of more than two persons in the carrying out of contracts for the execution of work with statutory minimum remuneration ;

“the Minister” means the Minister of Labour and National Service ;

PART III
—cont.

- “organisation” includes, in relation to workers, an association of trade unions, and, in relation to employers, an association of organisations of employers ;
- “prescribed” means prescribed by regulations made by the Minister ;
- “statutory provision” means a provision contained in or having effect under any enactment ;
- “superannuation scheme” means any enactment, rules, deed or other instrument, providing for the payment of annuities or lump sums to the persons with respect to whom the instrument has effect on their retirement at a specified age or on becoming incapacitated at some earlier age, or to the personal representatives or the widows, relatives or dependants of such persons on their death or otherwise, whether with or without any further or other benefits ;
- “statutory minimum remuneration” means remuneration (including holiday remuneration) fixed by a wages regulation order ;
- “thrift scheme” means any arrangement for savings, for providing money for holidays or for other purposes, under which a worker is entitled to receive in cash sums equal to or greater than the aggregate of any sums deducted from his remuneration or paid by him for the purposes of the scheme ;
- “time rate” means a rate where the amount of the remuneration is to be calculated by reference to the actual number of hours worked ;
- “trade union” includes an association of trade unions ;
- “wages council” and “commission of inquiry” mean respectively a wages council and a commission of inquiry established or set up under this Act ;
- “wages regulation order” means an order under section eleven of this Act ;
- “wages regulation proposals” means proposals under section eleven of this Act ;
- “work with statutory minimum remuneration” means work of a description for which, when executed by a worker, statutory minimum remuneration is provided under Part II of this Act ;
- “worker” means any person who has entered into or works under a contract with an employer, whether the contract be for manual labour, clerical work or otherwise, be expressed or implied, oral or in writing and whether it be a contract of service or of apprenticeship or a contract personally to execute any work or labour,

except that it does not include any person who is employed casually and otherwise than for the purposes of the employer's business:

PART III
—cont.

Provided that a home-worker under a contract for the execution of work with statutory minimum remuneration shall be treated for the purposes of the statutory provisions relating to the obligation to pay statutory minimum remuneration (other than holiday remuneration) and the statutory provisions providing for, or ancillary to, the enforcement of that obligation as if he were a worker as hereinbefore defined notwithstanding that the contract is not a contract of service or a contract for the execution of the work by the home-worker personally, and references in this Act to an employer and to an outworker shall be construed accordingly.

25.—(1) In Part III of the First Schedule to the House of Commons Disqualification Act, 1957 (which specifies certain offices the holders of which are disqualified under that Act) and in the Part substituted therefor by the Third Schedule to that Act in its application to the Senate and the House of Commons of Northern Ireland, for the entry relating to Wages Councils, Central Co-ordinating Committees and Commissions of Inquiry there shall be substituted:—

Consequential amendment of House of Commons Disqualification Act, 1957.

“Member of a Wages Council or Central Co-ordinating Committee appointed under paragraph 1 (a) of the Second Schedule to the Wages Councils Act, 1959, Chairman of a Committee appointed under paragraph 1 (1) (a) of the Third Schedule to that Act, or Member of a Commission of Inquiry appointed under paragraph 1 (a) of the Fourth Schedule to that Act”.

(2) This section extends to Northern Ireland.

26. Subject to the transitional and saving provisions contained in the Fifth Schedule to this Act, the enactments specified in the Sixth Schedule thereto are hereby repealed to the extent specified in the third column of that Schedule.

Transitional provisions, savings and repeals.

27.—(1) This Act may be cited as the Wages Councils Act, 1959.

Short title, commencement and extent.

(2) This Act shall come into operation on the expiration of the period of one month beginning with the date of the passing thereof.

(3) Save as otherwise expressly provided, this Act shall not extend to Northern Ireland.

SCHEDULES

Sections 1, 4.

FIRST SCHEDULE

PROVISIONS AS TO MAKING, REVOCATION AND VARIATION OF WAGES COUNCIL ORDERS

1. In this Schedule, except in so far as the context otherwise requires, "order" means an order, whether made in pursuance of the recommendation of a commission of inquiry or not, for establishing or abolishing a wages council or varying the field of operation of a wages council.

2. Before making an order, the Minister shall publish, in the prescribed manner, notice of his intention to make the order, specifying a place where copies of a draft thereof may be obtained and the time (which shall not be less than forty days from the date of the publication) within which any objection made with respect to the draft order must be sent to him.

3. Every objection so made must be in writing, and must state—

(a) the specific grounds of objection, and

(b) the omissions, additions or modifications asked for,

and the Minister shall consider any such objection made by or on behalf of any person appearing to him to be affected, being an objection sent to him within the time specified in the notice, but shall not be bound to consider any other objection.

4. If there are no objections which the Minister is required by the foregoing paragraph to consider or if, after considering all such objections, he is of opinion that all those objections either—

(a) in the case of an order to be made in pursuance of the recommendation of a commission of inquiry, were made to the commission and were expressly dealt with in the report embodying the recommendation; or

(b) in any case, will be met by modifications which he proposes to make under this paragraph or are frivolous,

he may make the order either in the terms of the draft or subject to such modifications, if any, as he thinks fit, being modifications which, in his opinion, do not effect important alterations in the character of the draft order as published.

5. Where the Minister does not proceed under the foregoing paragraph, he may, if he thinks fit, either—

(a) amend the draft order, in which case all the provisions of this Schedule shall have effect in relation to the amended draft order as they have effect in relation to an original draft order; or

(b) refer the draft order to a commission of inquiry for inquiry and report, in which case he shall consider the report of the commission and may then, if he thinks fit, make an order either in the terms of the draft or with such modifications as he thinks fit.

1ST SCH.
—cont.

6.—(1) Where any objection is made to the Minister and, under sub-paragraph (b) of the foregoing paragraph, he refers the draft order to a commission of inquiry, the Minister shall notify to the commission the objections which he wishes the commission to take into account, and the questions which it is the duty of the commission to consider and report on by virtue of the reference shall be all questions affecting the draft order which arise on or in connection with the objections so notified.

(2) The Minister shall include in the objections which he notifies to the commission all the objections which, under paragraph 3 of this Schedule, he is himself required to consider, other than any objections which he thinks fit to exclude, in the case of an order in pursuance of a recommendation of a commission of inquiry, on the ground that, in his opinion, they were made to the commission and were expressly dealt with in the report embodying the recommendation or, in any case, on the ground that they are in the Minister's opinion frivolous.

7.—(1) Where any of the councils affected by an order under section four of this Act is one of the councils in relation to which a central co-ordinating committee has been established under Part I of this Act, the Minister, before making the order, shall consult that committee and take into consideration any observations which it may make to him within fourteen days from the date on which he consults it.

(2) Where an order under section four of this Act directs that a wages council shall cease to operate in relation to any workers, and that another existing wages council shall operate in relation to them, but, save as aforesaid, does not affect the field of operation of any wages council, paragraphs 2 to 6 of this Schedule shall not apply but before making the order the Minister shall consult the councils concerned.

(3) On the reference under sub-paragraph (b) of paragraph 5 of this Schedule of a draft order for the abolition, or variation of the field of operation, of a wages council, subsection (2), or, as the case may be, (3) of section six of this Act shall apply as it would apply to the like reference under that section; and the power of the Minister under the said sub-paragraph (b) to modify the draft in making an order shall include power to make any alterations necessary to give effect to a recommendation of the commission, with or without modifications.

8. An order shall come into operation on the date on which it is first issued by Her Majesty's Stationery Office or on such later date as is specified in the order.

Sections 1, 7, 25.

SECOND SCHEDULE

CONSTITUTION, OFFICERS AND PROCEEDINGS OF WAGES COUNCILS AND CO-ORDINATING COMMITTEES

1. A wages council or central co-ordinating committee shall consist of persons appointed by the Minister, being—

- (a) not more than three persons chosen by the Minister as being independent persons ;
- (b) such number as the Minister thinks fit of persons who, in his opinion, represent employers in relation to whom the council or, as the case may be, the councils, in question is or are to operate ;
- (c) such number as the Minister thinks fit of persons who, in his opinion, represent workers in relation to whom the council or, as the case may be, the councils, in question is or are to operate.

2. Of the persons appointed under sub-paragraph (a) of paragraph 1 of this Schedule, one shall be appointed by the Minister to act as Chairman, and another may be appointed by the Minister to act as deputy chairman in the absence of the chairman.

3. Before appointing a person under sub-paragraph (b) or sub-paragraph (c) of the said paragraph 1, the Minister shall consult any organisations appearing to him to represent employers, or, as the case may be, workers, concerned, and the persons appointed under those sub-paragraphs shall be equal in number.

4. The Minister may appoint a secretary and such other officers as he thinks fit of a wages council or central co-ordinating committee.

5. The proceedings of a wages council or central co-ordinating committee shall not be invalidated by reason of any vacancy therein or by any defect in the appointment of a member.

6.—(1) A wages council or central co-ordinating committee may, if it thinks fit, delegate any of its powers under this Act to a committee or, as the case may be, sub-committee consisting of such number of persons, being members of the council or committee, as the council or committee thinks fit:

Provided that the members of the committee or sub-committee representing employers and the members of the committee or sub-committee representing workers shall be equal in number.

(2) The foregoing sub-paragraph does not empower a wages council to delegate its power to submit wages regulation proposals.

7. The Minister may make regulations as to the meetings and procedure of a wages council or central co-ordinating committee and of any committee or, as the case may be, sub-committee thereof, including regulations as to the quorum and the method of voting, but, subject to the provisions of this Act and to any regulations so made, a wages council or central co-ordinating committee and any committee or, as the case may be, sub-committee thereof may regulate its procedure in such manner as it thinks fit.

8.—(1) The term for which a member of a wages council or central co-ordinating committee is to hold office shall be such as may be determined by the Minister at the time of his appointment, and the conditions subject to which he is to hold office shall be such as may be prescribed.

2ND SCH.
—cont.

(2) Where the term for which the members of a wages council or central co-ordinating committee were appointed comes to an end before the Minister has appointed the persons who are to serve as members of the council or committee after the expiration of that term, they shall, except so far as the Minister otherwise directs, continue in office until the new appointments take effect.

9. There may be paid to the members of a wages council or central co-ordinating committee appointed under sub-paragraph (a) of paragraph 1 of this Schedule such remuneration, and to any member of any such council or committee such travelling and other allowances, as the Minister may, with the consent of the Treasury, determine, and all such remuneration and allowances shall be defrayed as part of the expenses of the Minister in carrying this Act into effect.

THIRD SCHEDULE

Sections 8, 25.

PROVISIONS AS TO ADVISORY COMMITTEES

1.—(1) Any committee appointed by the Minister at the request of a wages council shall consist of—

- (a) a chairman chosen as being an independent person ;
- (b) persons who appear to the Minister to represent the employers in relation to whom the committee will operate ; and
- (c) persons who appear to the Minister to represent the workers in relation to whom the committee will operate.

(2) On any such committee the persons appointed under head (b), and the persons appointed under head (c), of the foregoing sub-paragraph shall be equal in number.

2.—(1) The appointment of a member of any such committee as aforesaid shall be for such term as may be determined by the Minister before his appointment and shall be subject to such conditions as may be so determined.

(2) Where the term for which the members of an advisory committee were appointed comes to an end before the Minister has appointed the persons who are to serve as members of the committee after the expiration of that term, they shall, except so far as the Minister otherwise directs, continue in office until the new appointments take effect.

3. There may be paid to the chairman of any such committee as aforesaid such fees, and to any member of any such committee such travelling and other allowances, as the Minister may, with the consent of the Treasury, determine, and all such fees and allowances shall be defrayed out of moneys provided by Parliament.

Sections 9, 25.

FOURTH SCHEDULE

CONSTITUTION, OFFICERS AND PROCEEDINGS OF COMMISSIONS
OF INQUIRY

1. Every commission of inquiry shall consist of persons appointed by the Minister, being—

- (a) not more than three persons chosen by the Minister as being independent persons ;
- (b) not more than two persons chosen by the Minister to represent employers ;
- (c) not more than two persons chosen by the Minister to represent workers.

2. Of the persons appointed under sub-paragraph (a) of paragraph 1 of this Schedule, one shall be appointed by the Minister to act as chairman, and another may be appointed by the Minister to act as deputy chairman in the absence of the chairman.

3. The persons appointed by the Minister under sub-paragraphs (b) and (c) of the said paragraph 1 shall be equal in number and shall be appointed after such consultation as the Minister may consider necessary with such organisations representing employers and workers respectively as he thinks fit, and the said persons shall be persons who, in the opinion of the Minister, are not connected with or likely to be affected by the matters to be inquired into by the commission.

4.—(1) The Minister may appoint such number of persons as he thinks fit as assessors to be available to any commission of inquiry, being persons who, in the opinion of the Minister, have an expert knowledge of any of the matters with which the commission's inquiry is concerned.

(2) An assessor shall not vote or otherwise be a party to any report or recommendation of the commission.

5. The Minister may appoint a secretary and such other officers as he thinks fit of any commission of inquiry.

6. The proceedings of a commission of inquiry shall not be invalidated by reason of any vacancy therein or by any defect in the appointment of a member.

7. The Minister may make regulations as to the meetings and procedure of commissions of inquiry, including regulations as to the quorum, but subject to the provisions of this Act and to any regulations so made, a commission of inquiry may regulate its procedure in such manner as it thinks fit.

8. There shall be paid to members of, and assessors to, any commission of inquiry such remuneration and such travelling and other allowances as the Minister may, with the consent of the Treasury, determine, and all such remuneration and allowances shall be defrayed as part of the expenses of the Minister in carrying this Act into effect.

FIFTH SCHEDULE

Section 26.

TRANSITIONAL AND SAVING PROVISIONS

1.—(1) The repeals effected by this Act shall not affect the continuance in force of any council, committee, commission, appointment, order, regulations or permit established, set up, made or granted, or deemed to be established, set up, made or granted, or any thing done, under any enactment repealed by this Act, and any such council, committee or commission shall continue, and any such appointment, order, regulations, permit or thing shall continue to have effect, as if established, set up, made, granted or done under the corresponding provisions of this Act.

(2) Any record kept or deemed to be kept, or notice displayed or deemed to be displayed, in pursuance of any enactment repealed by this Act shall be deemed to be kept or displayed in pursuance of the corresponding provision of this Act.

2. Any proceedings for the making of any order which are, or are deemed to be, in course of being held at the commencement of this Act under any enactment thereby repealed may be continued under the corresponding provision of this Act.

3.—(1) The following provisions of this paragraph shall have effect as respects any trade board which by virtue of subsection (2) of section twenty of the Wages Councils Act, 1945, was deemed to be a wages council established under Part I of that Act.

(2) If at the commencement of this Act the constitution of the board is not in all respects in accordance with the provisions of the said Act of 1945,—

(a) the Minister may by order direct that, on such date as may be specified in the order, its constitution shall be in accordance with the provisions of this Act ;

(b) until such date as may be so specified, any regulations made under the Trade Boards Acts, 1909 and 1918, with respect to its constitution shall, by virtue of this paragraph, continue to have effect.

4. Any order in force at the commencement of this Act confirming, varying or cancelling any rate under the Trade Boards Acts, 1909 and 1918, shall have effect as if it were a wages regulation order :

Provided that the amount of remuneration due to any worker to whom any such order relates shall (subject to any other provision made in that behalf under the Wages Councils Act, 1945, or this Act) be calculated in like manner as if the enactments repealed by the said Act of 1945 had not been so repealed.

5. Any reference in any enactment or document made before the passing of the Wages Councils Act, 1945, other than an enactment repealed by that Act, to a trade board shall be construed as including a reference to a wages council.

6.—(1) For the purposes of paragraph (a) of subsection (3) of section twelve of this Act a contravention of the Catering Wages Act,

5TH SCH.
—cont.

1943, shall be treated as a like contravention, and in relation to such a contravention the reference in paragraph (b) of that subsection to Part II of this Act shall be construed as a reference to the said Act of 1943.

(2) The reference in paragraph (a) of subsection (3) of section nineteen of this Act to Part II of this Act, and the reference in subsection (4) of that section to an offence under the said Part II, shall be construed respectively as including a reference to the Catering Wages Act, 1943, and to an offence under that Act.

7.—(1) Subsection (1) of section seventeen of this Act shall apply in relation to the Catering Wages Act, 1943, as if for the words from “to show” to “as respects them” there were substituted the words “to indicate, as respects those workers, compliance or non-compliance with the provisions of the Catering Wages Act, 1943”.

(2) As respects wages regulation proposals and wages regulation orders relating to workers within the field of operation of the Industrial and Staff Canteen Undertakings Wages Council, the Unlicensed Place of Refreshment Wages Council, the Licensed Residential Establishment and Licensed Restaurant Wages Council or the Licensed Non-residential Establishment Wages Council, being proposals or orders made before the commencement of the Terms and Conditions of Employment Act, 1959, it shall, except in so far as may be otherwise expressly provided by regulations under this Act, be sufficient compliance with subsection (2) of section seventeen of this Act to comply with the requirements in force, immediately before the commencement of the Terms and Conditions of Employment Act, 1959, under subsection (2) of section eleven of the Catering Wages Act, 1943, and the regulations under that Act.

8. Subsection (1) of section sixteen of this Act shall not apply to any payment made, under a contract entered into before the passing of the Terms and Conditions of Employment Act, 1959, by or in respect of a worker within the field of operation, as constituted by section one of that Act, of any of the wages councils specified in sub-paragraph (2) of the foregoing paragraph.

9. The repeals effected by this Act shall not affect any right of a worker to recover sums from his employer on account of the payment to the worker of remuneration less than the statutory minimum remuneration, or the power of an officer of the Minister to institute on behalf of and in the name of the worker civil proceedings for the enforcement of that right or the power of the court in such proceedings to make an order for the payment of costs by the officer.

10. The repeals effected by this Act shall not be construed as extending to Northern Ireland so much of the Terms and Conditions of Employment Act, 1959, as remains unrepealed or as affecting the meaning therein of the expression “worker”.

11. Any enactment or document referring to an Act or enactment repealed by this Act shall be construed as referring to this Act or to the corresponding provision of this Act.

12. Nothing in the foregoing paragraphs shall prejudice the operation of subsection (2) of section thirty-eight of the Interpretation Act, 1889.

SIXTH SCHEDULE
ENACTMENTS REPEALED

Section 26.

Session and Chapter	Short Title	Extent of Repeal
8 & 9 Geo. 6. c. 17.	The Wages Councils Act, 1945.	The whole Act.
9 & 10 Geo. 6. c. 62.	The National Insurance (Industrial Injuries) Act, 1946.	In section six, paragraph (c).
9 & 10 Geo. 6. c. 67.	The National Insurance Act, 1946.	In section six, in subsection (4), paragraph (c).
12, 13 & 14 Geo. 6. c. 7.	The Wages Councils Act, 1948.	The whole Act, except the words from " Parts II " to the end in paragraph (c) of subsection (1) of section one and the First Schedule.
7 & 8 Eliz. 2. c. 26.	The Terms and Conditions of Employment Act, 1959.	The whole Act, except section eight and so much of subsection (1) of section nine as provides for the short title.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Truck Act, 1896	59 & 60 Vict. c. 44.
Trade Boards Act, 1909	9 Edw. 7. c. 22.
Trade Boards Act, 1918	8 & 9 Geo. 5. c. 32.
Road and Rail Traffic Act, 1933	23 & 24 Geo. 5. c. 53.
Catering Wages Act, 1943	6 & 7 Geo. 6. c. 24.
Wages Councils Act, 1945	8 & 9 Geo. 6. c. 17.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
House of Commons Disqualification Act, 1957	5 & 6 Eliz. 2. c. 20.
Terms and Conditions of Employment Act, 1959	7 & 8 Eliz. 2. c. 26.

CHAPTER 70

Town and Country Planning (Scotland) Act, 1959

ARRANGEMENT OF SECTIONS

PART I

COMPENSATION FOR COMPULSORY ACQUISITION OF LAND

Section

1. General provisions as to measure of compensation.
2. Assumptions as to planning permission.
3. Assumptions not directly derived from development plans.
4. Special assumptions in respect of certain land comprised in development plans.
5. Certification of appropriate alternative development.